

24PSCV03892 24PSCV03892

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Case Number: 24PSCV03892 Hearing Date: July 20, 2026 Dept: H

Arellano, et al.

v. Food 4 Less of California,

Case No. 24PSCV03892

ORDER ON

MOTIONS TO COMPEL FURTHER RESPONSES

1. Plaintiff Jeannette Arellano's Motion to

Compel Further Responses to Plaintiff's Special Interrogatories, Set One, from Defendant Alpha Beta Company dba Food 4 Less is GRANTED. Defendant is ordered to provide further responses to Arellano's Special Interrogatories, Set No. One, Nos. 16, 17, and 32 within 20 days from the date of the notice of ruling. Sanctions are declined.

2. Plaintiff

Jeannette Arellano's Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One, from Defendant Alpha Beta Company dba Food 4 Less is DENIED. Sanctions are declined.

Background

Plaintiffs

Jeannette Arellano ("Arellano") and Markos Presley Biggs, a minor, by and through his guardian ad litem, Jason John Biggs ("Biggs") (together, "Plaintiffs") allege as follows:

On

November 13, 2022, Arellano was attacked by a woman wielding a knife while grocery shopping. Arellano's 8-year-old son, Biggs, witnessed the attack.

On

November 8, 2024, Plaintiffs filed a complaint, asserting causes of action against Food 4

Less of California, Inc. ("Food 4 Less CA"), Food 4 Less of Southern California, Inc., The Kroger Co. ("Kroger"), Furst Enterprises Group A, LLC and

Does

1-60 for: (1) Premises Liability (Negligence), (2) Negligence (against security Does 41-50), (3) Negligent Hiring Training Supervision, and (4) Negligence/Negligent Infliction of Emotional Distress.

On

October 31, 2025, Food 4 Less CA's and Kroger's defaults were entered.

On

November 13, 2025, a "Stipulation [and Order] to Dismiss Defendants, The Kroger Co. and Food 4 Less of California, Inc. without Prejudice" was entered.

On

November 14, 2025, Plaintiffs dismissed Kroger and Food 4 Less CA, without prejudice.

A

Post-Mediation Status Conference/Case Management Conference is set for September 14, 2026.

1.

Motion to Compel Furthers Re: Special Interrogatories

Legal

Standard

"[T]he

propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An

answer to a particular interrogatory is evasive or incomplete.

(2) An

exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An

objection to an interrogatory is without merit or too general.”

(Code

Civ. Proc., § 2030.300, subd. (a).)

The motion must include a meet and confer

declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040; 2030.300, subd. (b)(1).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2030.300, subd. (b)(2).)

Notice

of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. . .” (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

“The

court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Discussion

Arellano

moves the Court for an order compelling Alpha Beta Company dba Food 4 Less ("Defendant") to serve further, verified responses to Arellano's Special Interrogatories, Set No. One (i.e., Nos. 16, 17 and 32). Arellano also seeks sanctions against Defendant and its counsel of record, jointly and/or severally, in the amount of \$5,707.20.

Evidentiary

Objections

The

Court rules on Defendant's evidentiary objection as follows: Sustained.

Merits

Arellano's

counsel Lindsey Downey ("Downey") represents, and/or the accompanying exhibits reflect, as follows:

On

June 26, 2025, Arellano served the subject discovery. (Downey Decl., ¶¶ 4-6, Exhs. 1 and 2.) On October 24, 2025, Defendant served unverified responses. (Id., ¶¶ 7-9, Exhs. 3 and 4.) Verifications were ultimately served on January 12, 2026. (Id., ¶ 7.) On February 19, 2025, Downey met and conferred telephonically with Defendant's counsel and agreed on reciprocal extensions of time for Defendant to provide further responses and Plaintiff to file any needed motions. (Id., ¶ 10.) On May 4, 2026, Defendant provided further responses. (Id., ¶¶ 10 and 11, Exh. 5.) On May 12, 2026, Downey sent a meet and confer letter, along with a notice that she would be submitting an Informal Discovery Conference ("IDC") request. (Id., ¶ 12.) Defendant's counsel agreed to extend any motion filing deadline until June 15, 2025 to permit the court to respond to the IDC request and to hold an IDC. (Id.) On May 12, 2026, Plaintiff filed the IDC request; however, on May 26, 2026, the clerk served a minute order which advised the parties that the Court could not accommodate the request but that motions could be filed if the parties were unable to resolve their dispute. (Id., ¶ 13, Exh. 6.) On June 5, 3036, counsel telephonically met and conferred, during which time the motion filing deadline was extended to June 22, 2026. (Id., ¶ 14.) On June 12, 2026, Defendant provided a further, unverified response to No. 16 and attached what appears to the "One (1) 'Punch Detail Report' dated November 13, 2022" (hereinafter "Punch Detail Report") previously identified in Defendant's

response to No. 32. (Id., ¶¶ 15 and 16, Exh. 7.) The motion followed on June 22, 2026.

The interrogatories in dispute are Nos. 16, 17, and 32. No. 16 asks Defendant to identify all persons who provided security for the Food 4 Less during the 5 years before the incident and including the date of the incident. No. 17 asks Defendant to identify all agreements between you and any person that it hired to provide any type of security for the Food 4 Less during the 5 years before the incident and including the date of the incident. No. 32 asks Defendant to identify each employee (including security guards) that it is aware of who was present at the Food 4 Less when the incident took place.

At the outset, it is unclear to the Court whether or not Defendant has, subsequent to the filing of the motion, served verifications in connection with its June 12, 2026 further response to No. 16. (See Downey Decl., ¶ 16, Exh. 7.) The parties are requested to provide clarification in this regard at or before the time of the hearing. The Court will proceed to review the sufficiency of Defendant's June 12, 2026 response to No. 16 under the assumption that it has since been verified.

Defendant's substantive response to No. 16 (i.e., that "Responding Party did not have a security guard at the subject store at the time of the subject incident. American Guard Services provided security services from approximately 3:45 pm to 12:15 a.m. The responding party does not know the identities of the security guards, which may be information that American Guard Services has access to") is deficient, as it appears limited to the time frame surrounding the incident rather than as to the entire five-year period identified in the interrogatory. Arellano accepts that the names of the individual security guards may be unknown; however, a further response identifying all entities that provided security services for the requested five-year period is warranted.

Defendant's substantive response to No. 17 (i.e., that "[w]ithout waiver, the Responding Party did not have a security guard at the subject store at the time of the subject incident. American Guard Services provided security services from approximately 3:45 pm to 12:15 a.m. Discovery is ongoing") does not answer the call of the question. A further response is warranted.

Defendant's

substantive response to No. 32 (i.e., erroneously identified as No. 4 in its May 4, 2026 responses) is insufficient. In its May 4, 2026 response, Defendant identified a "One (1) 'Punch Detail Report' dated November 13, 2022," which was not produced. On June 12, 2026, Defendant provided a further response to No. 16 and, without explanation, attached the "Punch Detail Report," which identifies the names of individuals working on that date. Defendant, however, has failed to provide contact information for these individuals or to represent that it will produce any of those employees for deposition with counsel. A further response is warranted.

The motion is granted in full.

Defendant is ordered to provide further responses to

Arellano's Special

Interrogatories, Set No. One, Nos. 16, 17, and 32 within 20 days

from the date of the notice of ruling.

Under

the circumstances presented, the Court declines the parties' reciprocal sanctions requests.

2.

Motion to Compel Furthers Re: Request for Production of Documents

Legal

Standard

"[T]he

demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply:

(1) A

statement of compliance with the demand is incomplete.

(2) A

representation of inability to comply is inadequate, incomplete, or evasive.

(3) An

objection in the response is without merit or too general."

(Code

Civ. Proc., § 2031.310, subd. (a).)

The motion must include a meet and confer

declaration which "state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) "In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute." (Code Civ. Proc., § 2031.310, subd. (b)(3).)

A

motion to compel further responses to a demand for inspection or production of documents must "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

If the moving party has shown good cause for the production of documents, the burden is on the objecting party to justify the objections. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

Notice

of the motion must be provided "within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing . . ." (Code Civ. Proc., § 2031.310, subd. (c).)

"[T]he

court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

Discussion

Arellano

moves the Court for an order compelling Alpha Beta Company dba Food 4 Less

("Defendant") to serve further, verified responses to Arellano's Request for Production of Documents, Set One (i.e., Nos. 3 and 12). Arellano also seeks sanctions against Defendant and its counsel of record, jointly and/or severally, in the amount of \$5,707.20.

Evidentiary
Objections

The
Court rules on Defendant's evidentiary objection as follows: Sustained.

Merits

See synopsis of Motion #1.

The
requests in dispute are Nos. 3 and 12. No. 3 asks Defendant to produce all documents evidencing any type of agreement or contract between it and any third-party security service to provide security for the Food 4 Less and/or the shopping center that was in effect on November 13, 2022. No. 12 asks Defendant to produce all documents that reflect any type of contract or agreement between it and any person that it hired to provide any type of security for the Food 4 Less during the 5 years before the incident and including the date of the incident.

"For discovery purposes,
information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement."
(Gonzalez v. Superior
Court (1995) 33 Cal.App.4th 1539, 1546
[internal quotations and citation omitted].) In this case, Plaintiffs have
alleged that Defendant knew, or should have known, of the dangers posed to the
public and its customers by the frequency of criminal activity in or around the
Food 4 Less and/or shopping center, yet failed to provide adequate security. Defendant
asserts that Nos. 3 and 12 seek irrelevant information because it has conceded
that it had no security guard at the store at the time of the incident. The
Court agrees. No further responses are warranted.

Under
the circumstances presented, the Court declines the parties' reciprocal
sanctions requests.